

Sunil Pandey v. State of U.P.

Allahabad High Court · Single Judge · 23 August 2024 · 2024:AHC:136313 · Application u/s 482 No. 26571 of 2024 ·
Section 482 Cr.P.C. application dismissed; s.135 proceedings not quashed.

HEADNOTE

A section 482 Cr.P.C. petition to quash an FIR, charge-sheet, summoning order and Criminal Electricity Case under section 135 of the Electricity Act, 2003 was dismissed. Spot inspection showed theft and the record disclosed prima facie ingredients of section 135. Disputes over the assessment period and an unconsidered objection were questions of fact for the trial court.

FACTUAL SUMMARY

Sunil Pandey sought quashing of the FIR dated 31 July 2021, charge-sheet, summoning order, and Criminal Electricity Case No. 181 of 2023 under section 135 of the Electricity Act, 2003, P.S. Anti Power Theft, Chandauli. He alleged the department charged theft for a whole year though assessment was for a month, and that his objection was ignored. The Electricity Department said he had not applied under clause 6.8 of the Electricity Supply Code, 2005, and did not want to pay the assessed amount.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

section 135 theft prosecution — 482 quash refused where ingredients prima facie made out

HOLDING

Where a spot inspection found the consumer indulged in electricity theft and the FIR and record disclose the ingredients of section 135 of the Electricity Act, 2003, a petition under section 482 Cr.P.C. to quash the FIR, charge-sheet, summoning order and criminal electricity case will not lie. Questions of fact—including the correctness of charging for a whole year though the assessment was for a month, and whether an objection was considered—are for the trial court. Section 482 is not a forum to appreciate evidence or test the reliability of the prosecution version, and the proceedings were not shown to be mala fide. ¶ 5-7

PRINCIPLE TAGS

opportunity-before-final-assessment A section 482 Cr.P.C. petition to quash an FIR, charge-sheet, summoning order and Criminal Electricity Case under section 135 of the Electricity Act, 2003 was dismissed. Spot inspection showed theft and the record disclosed prima facie ingredients of section 135.. ¶ 5-7

s135-arrest-safeguards-and-compounding-remedy A section 482 Cr.P.C. petition to quash an FIR, charge-sheet, summoning order and Criminal Electricity Case under section 135 of the Electricity Act, 2003 was dismissed. Spot inspection showed theft and the record disclosed prima facie ingredients of section 135.. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE THEFT ASSESSMENT (WHOLE-YEAR CHARGE VERSUS ONE-MONTH INSPECTION) AND THE UNCONSIDERED OBJECTION

Left as questions of fact for the trial court. ¶ 3-5

NOT DECIDED — WHETHER CLAUSE 6.8 OF THE ELECTRICITY SUPPLY CODE, 2005 IS THE PROPER REMEDY FOR THE ASSESSMENT GRIEVANCE

The Department submitted that no clause 6.8 application had been filed; the Court did not decide that route. ¶ 4

